

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 07/14/26 TIME: 1:30 P.M. DEPT: A CASE NO: CIV2102919

PRESIDING: HON. STEPHEN P. FRECCERO

REPORTER:

CLERK: G. STRATFORD

PLAINTIFF: SHIYING JIN ET AL. vs. DEFENDANT: BUCK INSTITUTE FOR RESEARCH ON AGING	
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NATURE OF PROCEEDINGS: MOTION – COMPEL – DISCOVERY FACILITATOR PROGRAM

RULING

Defendants’ motion to compel Plaintiffs’ further depositions is **DENIED** to the extent Defendants seek to ask questions which were previously asked at Plaintiffs’ earlier deposition sessions, regardless of the propriety of counsel’s instructions not to answer. The motion as to these questions is untimely. Defendants’ motion is **GRANTED** with respect to questions pertaining to new events, documents, and other witness testimony, but further depositions are limited to 4 additional hours for each Plaintiff. Defendants’ request for sanctions is **DENIED**.

Procedural Deficiency

Both Defendants and Plaintiffs failed to file declarations of non-resolution as required by Local Rule 2.13H. However, the appointed discovery facilitator, Margaret Farley, has advised the Court that the parties participated in the discovery process and that no resolution was reached. Accordingly, the Court will consider the motion but reminds the parties to comply with all applicable rules when filing matters with the court.

Procedural Background

Plaintiffs Shiyang Jin and Lei Lei filed their Complaint against Defendants Buck Institute for Research on Aging and Eric Verdin on July 28, 2021, alleging breach of contract, retaliation, hostile work environment harassment, discrimination, failure to prevent harassment,

discrimination or retaliation, wrongful termination, defamation per se, and misappropriation of trade secrets.

On June 9, 10 and 11 (half day) 2025, Defendants deposed Plaintiff Lei. On June 11 (half day), June 12 and 13, they deposed Plaintiff Jin. (Declaration of Johanna Kramer (“Kramer Decl.”), ¶3.) During the depositions, Plaintiffs’ counsel instructed the witness not to answer a number of questions. (*Id.*, ¶¶4, 5 and Exhs. A and B.) At the conclusion of the last deposition session for each Plaintiff, Defendants’ counsel stated that Defendants were going to keep the depositions open because there were a number of questions that counsel did not allow the witnesses to answer. (*Id.*, ¶6 and Exhs. A and B.) The certified transcripts were completed on June 25, 2025 (Lei) and June 28, 2025 (Jin). (Declaration of Shelley A. Molineaux (“Molineaux Decl.”), ¶3 and Exhs. 1 and 2.)

From July through October 2025 and again from January through April 2026, the parties met and conferred regarding deposition scope limitations, scheduling, and location. The parties agreed to pause deposition practice to pursue mediation which occurred in December 2025. (Kramer Decl., ¶7.) On March 3, 2026, Plaintiffs’ counsel took the position that Defendants had waived their right to compel further deposition testimony due to the passage of time. (*Id.*, ¶10.) Following meet and confer efforts, Defendants served notices of deposition for Plaintiffs. Plaintiffs objected to the notices and stated that they would not produce Plaintiff Lei for any continued deposition and would produce Plaintiff Jin for only two hours limited to mitigation of damages. As a result, Defendants pulled the scheduled depositions off calendar. (*Id.*, ¶¶12-15.)

Discussion

Defendants move for an order compelling Plaintiffs to appear for and complete their continued depositions, without improper instructions or objections, and seek monetary sanctions for what they contend is an abuse of the discovery process by Plaintiffs.

Questions Asked in Plaintiffs’ Earlier Deposition Sessions

To the extent Defendants seek an order allowing further depositions so that they can re-ask questions Plaintiffs were instructed not to answer, the motion is denied as untimely. Code of Civil Procedure Section 2025.460(e) provides: “If a deponent fails to answer any question . . . that is specified in the deposition notice or a deposition subpoena, the party seeking that answer or production may adjourn the deposition or complete the examination on other matters without waiving the right at a later time to move for an order compelling that answer or production under Section 2025.480.” Section 2025.480(b) requires a motion to compel to be made “no later than 60 days after the completion of the record of the deposition.”

Defendants do not dispute that they did not file their motion within the 60 day period contemplated by Section 2025.460(e). Courts have characterized discovery motion to compel deadlines as mandatory.

In *Sexton v. Superior Court* (1997) 58 Cal.App.4th 1403, the court held that the 45 deadline to file a motion to compel the production of documents under Section 2031.310(c) (formerly Section 2031(l)) is mandatory. The *Sexton* court stated that “the time within which to make a motion to compel production of documents is mandatory and jurisdictional just as it is for motions to compel further answers to interrogatories . . . we do not believe the 45-day limitation is ‘jurisdictional’ in the fundamental sense, but is only ‘jurisdictional’ in the sense that it renders the court without authority to rule on motions to compel other than to deny them.” (*Id.* at p. 1410.)

In *Unzipped Apparel, LLC v. Bader* (2007) 156 Cal.App.4th 123, the court addressed the 60 day deadline in Section 2025.480(b) in the context of a document subpoena to a nonparty who fails to produce documents. The court stated that the 60 day deadline applies in this context because a response to a business records subpoena, such as objections, is a “record of the deposition.” The court held that the subpoenaing party had 60 days from receipt of the objections to file its motion to compel and that “[t]he deadline was mandatory.” (*Id.* at p. 136 [citing *Sexton*].) The court reversed the trial court’s order granting the subpoenaing party’s motion to compel. In *Board of Registered Nursing v. Superior Court* (2021) 59 Cal.App.5th 1011, the court addressed a similar issue, holding that the subpoenaing party had 60 days to file a motion to compel from the date objections were served. The court noted that this 60 day period was not extended by meet and confer efforts because the meet and confer process is part of a discovery deadline; it does not extend it. (*Id.* at pp. 1034-1035.)

In *Young v. Daimler AG* (2014) 228 Cal.App.4th 855 n. 7, the First District discussed the issue in the context of waiver, stating that “appellants have waived any issues regarding inadequate discovery by failing to raise them in a timely fashion in the court below, either through appropriate motions to compel or otherwise. (See Code Civ. Proc., § 2025.480, subd. (b) [60-day deadline for motion to compel with respect to inadequate deposition testimony]; see also *id.*, §§ 2030.300, subd. (c) [45 day waiver of right to compel further response for written interrogatories], 2031.310, subd. (c) [same for document inspection], 2033.290, subd. (c) [same for requests for admission].)”

In *Weinstein v. Blumberg* (2018) 25 Cal.App.5th 316, the court held that a motion to compel further responses at a deposition is not “made” until the required supporting papers were served. Because the moving party did not serve the moving papers until 15 days before the hearing, its motion was untimely under Section 2025.480. The court stated: “The 60-day deadline was mandatory. Serving a notice of motion and motion to compel on December 6, 2016,

without the supporting papers identified therein rendered the motion untimely.” (*Id.* at p. 321 [citing *Unzipped*].)

Based on the above authority, Defendants’ motion is denied to the extent they seek to re-ask Plaintiffs questions that Plaintiffs were previously instructed not to answer. The motion is untimely. Defendants cite no authority that given the mandatory nature of the 60-day deadline, the Court can allow their motion upon a showing of good cause. Defendants do not make a showing of good cause for this portion of their motion in any event. The earlier deposition sessions took place almost a year before Defendants filed this motion. While Defendants argue that they were meeting and conferring prior to the filing of their motion in April, meet and confer efforts do not extend a motion to compel deadline. (*See Board of Registered Nursing*, 59 Cal.App.5th at pp. 1034-1035.) Defendants also argue that the parties agreed to pause depositions while pursuing mediation, but that did not happen until after the 60-day deadline had already passed. (Molineaux Decl., ¶4.)

The motion as to previously asked questions is denied for the additional reason that Defendants failed to file a separate statement in compliance with California Rule of Court 3.1345. (*See Mills v. U.S. Bank* (2008) 166 Cal.App.4th 871, 893 [where motion fails to include a separate statement, a trial court is “well within its discretion” to deny the motion on that basis].) Defendants do not dispute that a separate statement was required for this portion of their motion. (*See Reply*, pp. 7-9.)

Other Questions

Defendants seek to compel the continued depositions of Plaintiffs for an additional reason, i.e., to examine Plaintiffs about post-deposition developments, documents produced after Plaintiffs’ earlier depositions, and topics arising from witness testimony obtained after those earlier depositions.

Because this is an employment case, Plaintiffs’ depositions are not limited to seven hours. (Code Civ. Proc. § 2025.29(a), (b)(4).) Further, Section 2025.610 allows for a subsequent deposition of a party upon a showing of good cause.

Defendants have shown good cause to compel further deposition testimony from Plaintiffs. Defendants’ motion is granted to the extent Defendants seek to question Plaintiffs about post-deposition events or developments, documents, and witness testimony. Defendants may depose each Plaintiff for an additional four hours on these topics.

Sanctions

Defendants' request for sanctions under section 2025.480(j) is denied. For the reasons discussed above, Plaintiffs have acted with substantial jurisdiction and other circumstances make the imposition of sanctions unjust.

All parties must comply with Marin County Superior Court Local Rules, Rule 2.10(B) to contest the tentative decision. Parties who request oral argument are required to appear in person or remotely by ZOOM. Regardless of whether a party requests oral argument in accordance with Rule 2.10(B), the prevailing party shall prepare an order consistent with the announced ruling as required by Marin County Superior Court Local Rules, Rule 2.11.

The Zoom appearance information for July, 2026 is as follows:

<https://marin-courts-ca-gov.zoomgov.com/j/1605267272?pwd=908CbP6TV2mhCAyai1nzo6lyz2dKaw.1>

Meeting ID: 160 526 7272

Passcode: 026935

If you are unable to join by video, you may join by telephone by calling (669) 254-5252 and using the above-provided passcode. Zoom appearance information may also be found on the Court's website: <https://www.marin.courts.ca.gov>

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 07/14/26 TIME: 1:30 P.M. DEPT: A CASE NO: CV0001341

PRESIDING: HON. STEPHEN P. FRECCERO

REPORTER:

CLERK: G. STRATFORD

PLAINTIFF: MINNIE ROSE MCBRIDE	
vs.	
DEFENDANT: WILLIAM MONTI ET AL.	

NATURE OF PROCEEDINGS: MOTION – SUMMARY JUDGMENT

RULING

Defendant/Cross-Complainant Michael Monti’s (“Defendant”) Motion for Summary Adjudication in favor of Defendant and against Plaintiff/Cross-Defendant Minnie McBride (“Plaintiff”) is **DENIED**.

Background

This dispute concerns real property and improvements commonly known as and located at 55 Buena Vista Ave., Stinson Beach, California (“the Property”). Plaintiff alleges she and Defendant are co-owners of the Property. On November 13, 2023, Plaintiff filed suit for partition, accounting, and breach of fiduciary duty. On November 9, 2025, Plaintiff filed a Second Amended Complaint, adding a quiet title cause of action. The quiet title cause of action has been bifurcated and is separately set and now pending trial on August 4, 2026.

Presently before the Court is Defendant’s Motion for Summary Adjudication on the quiet title cause of action. In its April 17, 2026, Order, this Court found good cause to hear the Motion less than 30 days prior to the commencement of trial.

Requests for Judicial Notice

Defendant’s Requests for Judicial Notice Nos. 2-4 are GRANTED. (Evid. Code, §§ 452(c), 452(h), 453.) The document submitted in Request No. 1 is not a file endorsed copy of the pleading, therefore notice is not properly taken and the Request is DENIED. As to the documents contained in Requests Nos. 2-4, the Court takes notice of the existence documents, the fact that they were filed/recorded etc., but not the truth of statements contained therein.